Rethinking the Ethics of "Open" in the Shadow of AI.

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It might be no exaggeration to say that in the digital humanities AI is much like the proverbial hammer gripped in the hands of a person for whom everything is a nail. As scholars seek to test the limits of AI's application, dissect its inner workings, and explore both its hyped possibilities and inevitable disappointments, it might seem as though anything and everything is ripe for AI's application. Yet in the sprint to come to grips with AI's impact on the digital humanities, scholars are increasingly facing a question that has been at the practical and pedagogical heart of DH work for many years: how do we approach *openness* - open data, open scholarship, open platforms, open as an unqualified good - in the vacuuming shadow of AI?

It is well-documented that AI in its many permutations, from LLMs to image generators, are built upon open content that is then repackaged in closed and for-profit models. But for humanistic disciplines and practitioners, this open-to-closed pipeline is raising fundamental questions for scholarly practice. Is AI changing the way digital humanists approach open scholarship, whether through research, pedagogy, or the way digital humanities projects are designed? What reasons now do scholars have to be sceptical of openness as an unqualified good if it is simply fodder for corporate sell backs? How are scholars approaching these issues in their work?

The papers in this proposed panel explore the above question (and more) through deeply investigative and rigorous theoretical and practical considerations. For example, the decision to forgo the making datasets open to LLMs because of sensitive cultural or political implications and privacy issues is an emerging question for the design of certain digital humanities projects. Similarly, what is the place of data sovereignty in digital humanities work when tech companies are arguing that LLMs and generative imagery are foundationally transformative in order to shield themselves from lawsuits? And are open pedagogical practices, once thought to empower students, now pushing students into becoming unpaid content creators?

'Highly Transformative': Under the Hood of AI Tools

Presenter: Dr. Filipa Calado

Filipa Calado is an Assistant Professor at Pratt Institute School of Information. Her presentation considers questions of digital materiality in light of recent copyright lawsuits filed by content creators against AI developer *OpenAI* . In one recent case, a group of authors allege that *OpenAI* uses original work without permission, attribution, or compensation to its creators. In response, *OpenAI* maintains that this use of original content is legal due to the "highly transformative" nature of machine learning technology, which converts linguistic expressions into numerical representations. Drawing from prior copyright cases that distinguish between idea and expression, *OpenAI* argues that this technology makes "non-expressive," and therefore legal, copies to "help computer programs learn the patterns inherent in human-generated media."

Filipa's presentation peeks under the hood of opaque machine learning processes to interrogate the extent to which language can be understood as equivalent to "facts" or "ideas" in its electronic forms. Drawing from her work curating a dataset to train an AI model, she traces the transformations that language undertakes when it passes through various layers of digital processing from input, training data to generated output, revealing different levels of materiality at each stage. By demonstrating how machines process and manipulate text at a fundamental level, she illustrates the inherent expressiveness of language within digital formats. She bases this often overlooked digital materiality as ground for thinking through ethical questions of data sovereignty in the age of AI.

Open Education in the Age of AI

Presenter: Dr. Matthew K. Gold

Matthew K. Gold is Associate Professor of English and Digital Humanities at the CUNY Graduate Center. His presentation, "Open Education in the

Age of AI," focuses on the dangers that AI poses to open education and considers how educators might respond to them. Over the last few decades, the open digital pedagogies practiced by DHers and allied scholars have emphasized classroom practices such as student blogging, student publishing, and open digital project development. Work in the area of open educational resources (OER) has especially intensified as faculty, staff, and librarians have aimed to reduce educational costs and support students as knowledge creators.

These open practices have come under an increasing series of pressures in recent years, ranging from enclosures of the commons to the "openwashing" practices of for-profit publishers to the politicization of educational content related to issues of immigration and diversity. In each of these cases, the benefits of openness have been compromised and made suspect. Artificial intelligence has multiplied the dangers, presenting the possibility that the hope-driven optimism of open pedagogy has produced a nightmare-in-waiting, with students being turned into unwitting content producers whose work is used to train AI models. Are open pedagogical practices, once thought to empower students, now pushing students into becoming unpaid content creators, laboring in systems that monetize their work and accelerate our collective climate crisis?

How can and/or should we practice open education at this moment? This presentation will explore these questions, looking for ways to sustain the possibilities that open education has thus far produced.

When Real World Harm Comes from the Cloud

Presenter: Dr. Lauren Klein

Lauren Klein is Associate Professor of Quantitative Theory & Methods and English at Emory University. Her presentation, “When Real World Harms Come from the Cloud,” will explore a project involving a computational analysis of textual data relating to Stop Cop City, an Atlanta-based activist movement directed at stopping the construction of a $60M police training facility that is being built without the support of the majority of city residents, in a predominantly Black neighborhood, on the ancestral lands of the Muscogee people. Activism around Cop City has forged coalitions among local groups advocating for police abolition, racial justice, environmental justice, and the Indigenous “land back” movement. There has also been significant political suppression of the Cop City movement, including many cases of unlawful arrest and in one case murder.

Klein’s presentation will place the otherwise standard set of considerations of a project involving computational text analysis–where to store the data, what tools to use to process it, where to store the project’s code and related data annotations, and how to document and circulate the results–in this high-stakes context. Explaining how the new AI landscape in which any code placed in public repositories (e.g. GitHub) is used to train large language models, recommended tools (e.g. WhisperAPI for speech to text transcription) similarly compromises the security of the data being transcripted), and even making public the results of an analysis based on technically open but previously obscured data, involve many downstream harms, Klein will argue that the risks surfaced by the Cop City Project are not only directly relevant to that project, but point to questions that all those who seek to conduct digital humanities work in public will need to ask.

Open Access and Poison Pills: Artistic and Institutional Responses to AI

Presenter: Dr. Benjamin Zweig

Benjamin Zweig is Digital Projects Manager at Columbia University Libraries and Visiting Assistant Professor at the Pratt School of Information.

In 2023, University of Chicago researchers released a tool named *Nightshade* that allowed artists to “poison” their work for training AI models. While the efficacy of the tool has come under scrutiny, its quick adoption gestures towards a continuing concern for creative communities and AI: how does one protect oneself and one’s work from AI companies while not abandoning principles and promises of creative openness or open access? Indeed, at the heart of many generative AI models is an implied transformative openness regarding training content. But what happens when, as in the case of Midjourney, training data contains recently deceased and living artists' work without credit or compensation? And how are artists to respond to the companies taking advantage of artists by underpaying or under-compensating them as part of research and development of products like Sora, in a process that has been described as “art washing?”

In response to these questions, his paper examines the variety of current responses by both artists and institutions in regards to the sweeping ingestion of artworks in generative AI models. In some cases, he argues, museum collections whose open access policies and datasets have no claim to copyrightable material are embracing AI as the next stage of openness or profiting from them. In other cases, however, he shows how artists’ estates and artists themselves are attempting to assert their rights whether through technical mechanisms, lawsuits, experimental licenses, or through challenging what Erik Sylvaggio calls the “creativity myth” underpinning AI companies’ corporate defense strategy that will create a roadmap for future resistance.